

21STCV27622 21STCV27622

County: los-angeles

Division: Civil Law and Motion

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Case Number: 21STCV27622 Hearing Date: September 23, 2026 Dept: 732

David Gutierrez. v. General Motors LLC, et al.

Wednesday,

September 23, 2026

CASE NUMBER:

21STCV27622

OPPOSED

Plaintiff David

Gutierrez's Motion for Attorney Fees

Facts:

This is a lemon law action. The First Amended Complaint (FAC) alleges as follows. Plaintiff David Gutierrez (Plaintiff) entered into a warranty for his vehicle with Defendant on May 23, 2018. (FAC ¶ 6.) During the warranty period, the vehicle contained or developed defects that Defendant has been unable to remedy. (Complaint ¶¶ 7–14.)

Procedural

History: Plaintiff filed the Complaint on July 27, 2021, and filed the FAC on January 4, 2022, alleging five causes of action:

1.

VIOLATION OF SUBDIVISION (D) OF CIVIL CODE SECTION
1793.2

2.

VIOLATION OF SUBDIVISION (B) OF CIVIL CODE SECTION
1793.2

3.

VIOLATION OF SUBDIVISION (A)(3) OF CIVIL CODE SECTION
1793.2

4.

BREACH OF THE IMPLIED WARRANTY OF MERCHANTABILITY

5.

FRAUD BY OMISSION

On

March 30, 2022, this court denied and overruled Defendant's motion to strike
and demurrer to the FAC.

On

June 7, 2022, this court granted Plaintiff's motion to compel further responses
to requests for production.

A

notice of settlement was filed on December 17, 2025.

Plaintiff

filed the present motion for attorney fees on June 26, 2026.

Defendant

filed an opposition on September 8, 2026.

Analysis:

I.

MOTION FOR ATTORNEY FEES

Parties to litigation must generally bear their own attorney's fees, unless they otherwise agree. (Code Civ. Proc. § 1021.) However, the Song-Beverly Act provides for the award of attorneys' fees to prevailing plaintiffs as follows:

If the buyer prevails in an action under this section, the buyer shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney's fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action.

(Civ. Code § 1794, subd. (d).)

"It is well established that the determination of what constitutes reasonable attorney fees is committed to the discretion of the trial court, whose decision cannot be reversed in the absence of an abuse of discretion." (Melnik v. Robledo (1976) 64 Cal.App.3d 618, 623.) In exercising its discretion, the court should consider a number of factors, including the nature of the litigation, its difficulty, the amount involved, the skill required in handling the matter, the attention given, the success or failure, and the resulting judgment. (See id.)

In determining the proper amount of fees to award, courts use the lodestar method. The lodestar figure is calculated by multiplying the total number of reasonable hours expended by the reasonable hourly rate. "Fundamental to its determination . . . [is] a careful compilation of the time spent and reasonable hourly compensation of each attorney . . . in the presentation of the case." (Serrano v. Priest (1977) 20 Cal.3d 25, 48 (Serrano III).) A reasonable hourly rate must reflect the skill and experience of the attorney. (Id. at p. 49.) "Prevailing parties are compensated for hours reasonably spent on fee-related issues. A fee request that appears unreasonably inflated is a special circumstance permitting the trial court to reduce the award or deny one altogether." (Serrano v. Unruh (1982) 32 Cal.3d 621, 635 (Serrano IV).) The Court in Serrano IV also stated that fees associated with preparing the motion to recover attorneys' fees are recoverable. (See id. at p. 624.)

Plaintiff David Gutierrez ("Plaintiff") seeks an award of fees and costs

in the total amount of \$42,410.76, representing a fee lodestar of \$28,692.60, with a multiplier of 1.35, plus costs in the amount of \$2,175.88, and an additional \$1,500.00 for fees incurred in responding to Defendant General Motors, LLC's ("Defendant") opposition to the present motion. (Motion at p. ii.)

The \$30,192.60 lodestar (\$28,692.60 plus \$1,500.00 anticipated work defending the motion) represents 60.2 hours of work by 17 timekeepers, charging rates of \$205 to \$650 per hour, with a mean hourly rate of \$501.54. (Shahian Decl. Exh. 1.)

Defendant in opposition argues that the motion is untimely under California Rules of Court ("CRC") Rule 3.1702, subd. (b)(1), which provides the time to file an attorney fee motion as follows:

A notice of motion to claim attorney's fees for services up to and including the rendition of judgment in the trial court--including attorney's fees on an appeal before the rendition of judgment in the trial court--must be served and filed within the time for filing a notice of appeal under rules 8.104 and 8.108 in an unlimited civil case or under rules 8.822 and 8.823 in a limited civil case.

(CRC Rule 3.1702, subd. (b)(1).)

CRC Rule 8.104 requires a notice of appeal to be filed 60 days after the court or a party serves notice of entry of judgment, or "180 days after entry of judgment." (CRC Rule 8.104, subd. (a)(1)(A)–(C).) Dismissal was entered here by court order, pursuant to stipulation of the parties, on December 29, 2025, and Defendant argues the motion should have been filed within 60 days of this date. (Opposition at p. 14.) But although Defendant states in its memorandum that "[t]he Court served the parties with the order of dismissal on this same date" (Opposition at p. 14), nothing in the evidence cited or the court's file indicates that the dismissal entered pursuant to the stipulation was served as Defendant describes. Therefore, because the motion was filed on June 26, 2026 — 179 days after entry of dismissal — and there is no evidence of service of a notice of dismissal, the motion is timely under CRC Rule 3.1702 and Rule 8.104.

Proceeding to its objections to the fees in particular, Defendant in

opposition argues that this court should disallow fees incurred after its service of a section 998 offer on November 14, 2023. (Opposition at pp. 10–11.) Defendant at that time offered Plaintiff \$15,000.00, inclusive of fees and costs. (Rader Decl. Exh. 3.) Plaintiff rejected the offer, and on December 16, 2025, accepted an offer for \$9,000.00, plus prejudgment interest up to the date of acceptance (which amounted to \$3,952.68), with fees and costs to be determined by motion. (Rader Decl. ¶ 18, Exh. 5.) Defendant argues that since Plaintiff accepted a settlement offer that awarded less than the original November 2023 offer, Plaintiff should not be awarded fees accrued after that offer was served. (Opposition at pp. 10–11.)

No such reduction is appropriate. The accepted offer granted Plaintiff greater recovery than the first because it offered Plaintiff fees and costs to be determined by motion, rather than included in the \$15,000.00 amount. Binding authority holds “that it is an error of law for the trial court to reduce or deny an award of attorney fees in a civil rights or public interest case on the basis of a plaintiff’s rejection of a Code of Civil Procedure section 998 offer when the ultimate recovery has exceeded the rejected offer.” (Reck v. FCA US LLC (2021) 64 Cal.App.5th 682, 697.) The court that made the above holding relied upon *Joyce v. Town of Dennis* (1st Cir. 2013) 720 F.3d 12. (Reck, supra, 64 Cal.app.5th at p. 695.) There, a trial court reduced a prevailing plaintiff’s \$170,000 fee request because she had rejected a \$35,001 fee-inclusive settlement offer, and thereafter obtained an ultimate damages award of only \$15,000. (*Joyce*, supra, 720 F.3d at pp. 28–29.) The appellate court reversed, noting that the ultimate total award, including “damages, costs, and attorney’s fees,” exceeded the offer, meaning the settlement offer could not form a basis for a fee reduction. (*Id.* at p. 32.)

The same principle applies here. Defendant offered \$15,000.00, inclusive of fees and costs, and Plaintiff ultimately settled for an award of \$12,952.68 (i.e. \$9,000 plus prejudgment interest), with fees and costs to be determined on motion. Defendant argues that, at the time of the first offer, Plaintiff’s “reasonable fees” amounted only to \$3,392.50, and her costs to \$1,551.95. (Opposition at p. 10.) Even accepting Defendant’s calculation of fees and costs, Plaintiff’s recovery on the second settlement is greater. But Defendant’s calculation is not even based on Plaintiff’s record of fees. Defendant instead offers its own judgment as to what fees incurred prior to the first settlement offer were “reasonable.” Plaintiff’s own billing records indicate that the period before the November 2023 settlement offer — which period included a

demurrer, a motion to compel further, and preparation for a trial date then scheduled for December 2023 — amounted to more than \$20,000, the majority of the fee lodestar sought here. Plaintiff's rejection of the first settlement offer was therefore reasonable, and furnishes no basis to reduce the requested fee award.

Defendant is persuasive, however, when arguing for the excessiveness of some of the requested hourly rates of Plaintiff's counsel. (Opposition at pp. 2–4.) The “reasonable hourly rate [used to calculate the lodestar] is the product of a multiplicity of factors ... the level of skill necessary, time limitations, the amount to be obtained in the litigation, the attorney's reputation, and the undesirability of the case.” (Ketchum v. Moses (2001) 24 Cal.4th 1122, 1139.) Based on the evidence presented by the parties — including the testimony of Plaintiff's counsel, their record of prior fee awards in other cases, and Defendant's presentation of the 2023 Real Rate Report prepared by Wolters Kluwer (Quezada Decl. Exh. S) — as well as the relative complexity of the case and the amount at issue in this litigation, the court concludes that the hourly rates presented by Plaintiff's counsel ought properly to be reduced to a rate of \$550 per hour for partners, and \$425 per hour for other attorneys.

Applying these reduced rates yields the following lodestar reductions associated with each affected attorney:

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Tionna Carvalho: \$290

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Mani Arabi: \$70

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Olivia Avelino: \$340

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James Carroll: \$884

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Joy de Leon: \$360

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Scott Friedman: \$690

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Regina Liou: \$105

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Ian McAllister: \$493

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Hunter McMillan: \$20

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Rebecca Neubauer: \$10

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Maro Orte: \$22.50

.

Emily Rader: \$203

The reduction in rates
identified above thus yields an overall lodestar reduction of \$3,197.50.

Defendant further argues that
several reductions are appropriate for unreasonable or excessive time billed
for various tasks. (Opposition at pp. 6–9.) Certain of the charges identified are
properly deducted. These include a \$1,025.00 charge incurred on January 4,
2022, for revision of a largely templated motion to compel further for which
another drafting attorney elsewhere billed. (Shahian Decl. Exh. 1.) This also
includes \$2,009.00 incurred in opposing Defendant's demurrer and motion to
strike, which exclusively concerned Plaintiff's fraud cause of action and
accompanying prayer for punitive damages — neither of which are among the Song
Beverly claims for which fees are awardable.
(See *Santana v. FCA US, LLC* (2020) 56 Cal.App.5th 334, 349
[apportionment of time between compensable and non-compensable claims is
required when it is reasonably feasible "to separate the attorney's time into
compensable and noncompensable units"].) These two charges amount to a lodestar
reduction of \$3,034.00.

It is also proper to deduct

various charges for revision of discovery responses and meet-and-confer letters which are largely based on templates, and which were drafted by other attorneys who also bill for the same work. These charges are for \$316.00, \$197.50, and \$205.00, on October 14, 2021, December 23, 2021, and January 25, 202, respectively, yielding a further reduction of \$718.5.

Defendant

argues that Plaintiff's counsel overstaffed this matter with excessive timekeepers. (Opposition at p. 12–13.) It is true that unreasonable multiplicity of attorneys performing duplicative work may furnish a basis to substantially reduce a cost award. In *Morris v. Hyundai Motors America* (2019) 41 Cal.App.5th 24, the trial court substantially reduced a requested attorney fees award involving 11 attorneys and two firms in a lemon law action. (Id. at p. 32.) "Out of a total of 283.3 hours of billed work, the court did not award any fees for 83.5 hours of work billed by six associates." (Ibid.) The appellate court affirmed: "Plainly, it is appropriate for a trial court to reduce a fee award based on its reasonable determination that a routine, non-complex case was overstaffed to a degree that significant inefficiencies and inflated fees resulted." (Id. at p. 39.) The appellate court determined that the trial court's remedy of cutting out several attorneys' billings was permissible because it "was designed to yield a revised lodestar figure that reflected a total amount of fees that were reasonably incurred." (Id. at p. 40.)

The present motion

evidences a large number of timekeepers on Plaintiff's case. But a large number of attorneys is not on its own reason to reduce a fee award, and the cases cited above upheld lodestar reductions based on the "duplicative" and "inefficient" billings that resulted from the number of attorneys employed. (*Mikhaeilpoor*, supra, 48 Cal.App.5th at p. 255; *Morris*, supra, 41 Cal.App.5th at p. 40.) Here, it does not appear that overstaffing resulted in such great inefficiencies that only an overall reduction in the lodestar can account for them. Review of the billing records presented by Plaintiff permits reduction where duplicative or inefficient work is present, as described above.

Thus, applying the

reductions identified above, the fee lodestar is properly reduced, from the requested amount of \$30,192.60 to the lesser amount of \$23,242.60.

Defendant argues

that Plaintiff's costs should not be awarded, as the only verification of the costs requested is the table thereof presented in connection with Plaintiff's billings. (Opposition at p. 14.) Yet this table of costs and the authentication provided therewith by Plaintiff's counsel is adequate basis upon which to seek the costs requested in the present motion. (Shahian Decl. ¶¶ 26–28, Exh. 1), The only reduction apparently proper here is a \$12.95 charge in connection with filing the opposition to Defendant's demurrer, which once again did not address Plaintiff's compensable Song Beverly claims. (Shahian Decl. Exh. 1.) Thus the overall costs award is reduced by \$12.95 to \$2,162.93.

Finally, no lodestar multiplier is

appropriate in this case. "Once the court has fixed the lodestar, it may increase or decrease that amount by applying a positive or negative 'multiplier' to take into account a variety of other factors, including the quality of the representation, the novelty and complexity of the issues, the results obtained, and the contingent risk presented." (Thayer v. Wells Fargo Bank., N.A. (2001) 92 Cal.App.4th 819, 833.) The

court's file and the billings submitted in support of the motion demonstrate that this lemon law case, which did not proceed to trial, was not particularly novel or complex.

Accordingly, the motion for attorney fees is

GRANTED for fees in the amount of \$23,242.60. and costs in the amount of \$2,162.93.

Superior Court of California

County of Los Angeles

Department 732

DAVID GUTIERREZ,

Plaintiff,

v.

GENERAL MOTORS, LLC., et al.

Defendant(s).

Case No.:

21STCV27622

Hearing Date: September 23, 2026

[TENTATIVE] RULING RE:

Plaintiff David

Gutierrez's Motion for Attorney Fees

Plaintiff David Gutierrez's Motion for

Attorney Fees is GRANTED in the amount of GRANTED for fees in the amount of

\$23,242.60. and costs in the amount of

\$2,162.93.

Plaintiff to provide Notice.

Dated: September 23, 2026

Hon.

Richard S. Kemalyan

Judge

of the Superior Court